

Petition to Compel Trustee to Disclose Trust Terms and Request for Attorneys' Fees and Costs [Prob. Code §§ 16061, 17200]

PREGRANT ORDER

The court finds all notices have been given as required by law. Absent any objections, the petition is granted as prayed.

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IN RE THE ESTATE OF ALPHONSO BLACK, JR., DECEASED
PR26-00334

Amended Petition to Determine Succession to Primary Residence

PREGRANT ORDER

This matter was continued from July 23, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended petition filed July 23, 2026 and the Inventory filed July 24, 2026 which did not resolve all of the issues.

The court on its own motion continues this hearing to October 01, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. A Petition to Determine Succession to Primary Residence is not a Spousal Property Petition. This petition is used to transfer real property below a certain value outside of a formal probate process per Probate Code section 13151. The decedent was survived by a son who may be entitled to 50% of the property. The petitioner shall explain whether the son will sign an assignment to the petitioner.
2. There is no Proof of Service on the amended petition. Amended petitions replace the original petition for all purposes. (Cal. Rules of Court, Rule § 7.3(3).) Notice of amended petitions must be given in the same manner as notice for original petitions. (Cal. Rules of Court, Rule § 7.53(a).)
3. An amended petition replaces the prior petition for all purposes. (See Cal. Rules of Court, rule 7.3.) Amended petitions must include all the attachments referred to in the amended petition, even if they were previously provided in a prior version of the petition.

LINE

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IN THE MATTER OF THE CORMAC C. AND JOY L. DOWNEY 2017 LIVING TRUST
PR26-00356